

Opinion of the Court

foreign immunity when the “Department of State . . . declined to act”); *Heaney v. Government of Spain*, 445 F. 2d 501, 503, and n. 2 (CA2 1971) (evaluating sovereign immunity when the State Department had not responded to a request for its views). In making that decision, a district court inquired “whether the ground of immunity is one which it is the established policy of the [State Department] to recognize.” *Hoffman*, 324 U. S., at 36. Although cases involving individual foreign officials as defendants were rare, the same two-step procedure was typically followed when a foreign official asserted immunity. See, e. g., *Heaney*, 445 F. 2d, at 504–505; *Waltier v. Thomson*, 189 F. Supp. 319 (SDNY 1960).⁶

Prior to 1952, the State Department followed a general practice of requesting immunity in all actions against friendly sovereigns, but in that year the Department announced its adoption of the “restrictive” theory of sovereign immunity. *Verlinden*, 461 U. S., at 486–487; see also Letter from Jack B. Tate, Acting Legal Adviser, Dept. of State, to Acting Attorney General Philip B. Perlman (May 19, 1952), reprinted in 26 Dept. State Bull. 984–985 (1952). Under this theory, “immunity is confined to suits involving the foreign sovereign’s public acts, and does not extend to cases arising out of a foreign state’s strictly commercial acts.” *Verlinden*, 461 U. S., at 487. This change threw “immunity determinations into some disarray,” because “political considerations sometimes led the Department to file ‘suggestions of immunity in cases where immunity would not have been available under the restrictive theory.’” *Republic of Austria v. Alt-*

⁶ Diplomatic and consular officers could also claim the “specialized immunities” accorded those officials, Restatement (Second) of Foreign Relations Law of the United States § 66, Comment *b* (1964–1965) (hereinafter Restatement), and officials qualifying as the “head of state” could claim immunity on that basis, see *Schooner Exchange v. McFaddon*, 7 Cranch 116, 137 (1812) (describing “the exemption of the person of the sovereign” from “a jurisdiction incompatible with his dignity”).